

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ABEL TIRADO,

Index No.

Date Index No. Purchased:

Plaintiff,

-against-

Plaintiff designates NEW
YORK County as the place
of trial.

THE CITY OF NEW YORK,
VICTORIA HURCHEY, PAUL RAU,
and JOHN DOES,

The basis of venue is the
locus of the events in the
Complaint

SUMMONS

Defendants.
-----X

To the above-named Defendant(s):

Please take notice that you are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within twenty (20) days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 29, 2022



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Attorney for Abel Tirado

Defendants' address:

City of New York
c/o Corporation Counsel
100 Church Street
New York, NY 10007

Victoria Hurchey, Shield #9794, TAX ID 960694
c/o NYPD Strategic Response Group 5 SI
2320 Hylan Boulevard
Staten Island, NY 10306

Paul Rau, Shield 2449, TAX ID 944156
c/o NYPD 44th Precinct
2 East 169th Street
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ABEL TIRADO,

Index No.

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK,
VICTORIA HURCHEY, PAUL RAU,
and JOHN DOES,

Defendants.
-----X

Plaintiff Abel Tirado, by his attorney, Cyrus Joubin, complaining of the Defendants,
respectfully alleges as follows:

PRELIMINARY STATEMENT

1. This action arises from various civil rights violations against Abel Tirado (“Tirado” or “Plaintiff”) by New York City police officers. Plaintiff asserts constitutional claims pursuant to 42 U.S.C. § 1983 (“Section 1983”) against the individual defendants for First Amendment retaliation, false arrest, excessive force, malicious prosecution, denial of the right to a fair trial, failure to intervene, and a *Monell* claim against the City of New York for the same constitutional violations. Additionally, Plaintiff asserts analogous claims under New York Law against the individual defendants, and against the City of New York under the doctrine of *respondeat superior*. Plaintiff seeks compensatory and punitive damages, costs, disbursements, and attorney’s fees pursuant to applicable state and federal civil rights law.

VENUE AND JURISDICTION

2. Venue is proper in New York County Supreme Court pursuant to CPLR Section 503 because the acts complained of occurred in New York County, New York, and Plaintiff suffered damages that exceed the jurisdictional amount of all lower courts of the State of New York.

3. Plaintiff has complied with N.Y. General Municipal Law Section 50-E by serving a notice of claim upon the defendants. More than 30 days have elapsed since said claim was presented and the claim has not been satisfied. This action has been commenced within one year and ninety days after the occurrence of the event upon which the claims are based.

JURY DEMAND

4. Plaintiff respectfully demands a trial by jury of all issues in this matter.

PARTIES

5. At all times relevant herein, Plaintiff was a resident of the State of New York.

6. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York.

7. Defendant City of New York is authorized by law to maintain the NYPD, is ultimately responsible for the New York City Police Department (“NYPD”), and assumes the risks incidental to the maintenance of it and its employees.

8. The individually named defendants Victoria Hurchey (Shield # 9794), Paul Rau (Shield # 28469 on November 4, 2020; currently #2449), and John Does (collectively, the “individual defendants”) are and were at all times relevant herein officers, employees and agents of the NYPD.

9. Each individual defendant is sued in his or her individual and official capacity.

At all times mentioned herein, each individual defendant acted under the color of state law, in the capacity of an officer, employee, and agent of defendant City of New York (“Defendant City”).

10. At all times relevant herein, the individual defendants were acting as duly appointed and acting NYPD officers, servants, employees, and agents of Defendant City; for, on behalf of, and with the power and authority vested in them by Defendant City; and they were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties.

STATEMENT OF FACTS

11. In the evening of November 4, 2020, Tirado participated in a peaceful and lawful Black Lives Matter protest originating in Washington Square Park in the West Village of Manhattan.

12. During this peaceful protest, Tirado served a medic, rendering aid to protestors in need of assistance.

13. Tirado carried his IFAK (Individual First Aid Kit), which had a red cross on it, as well as a plastic shield; he also wore a backpack with a medic patch on it.

14. In addition, Tirado wore a helmet, motorcycle gloves, knee guards, and arm guards so that he could protect himself from the likely prospect of police brutality, which was the NYPD’s well-established modus operandi in dealing with peaceful protestors in the aftermath of George Floyd’s murder.

15. Tirado was in possession of nothing unlawful or suspicious.

16. When people began to peacefully march and chant, NYPD vans and officers followed.

17. Tirado was peaceful, orderly, and helpful throughout the protest.

18. For no legitimate reason, Strategic Response Group (“SRG”) officers used their bicycles to block the peaceful protestors.

19. Despite the peaceful nature of the protest, NYPD officers – including the individually named defendants Hurchey and Rau – swarmed and kettled the protestors, violently attacked protestors, slammed bicycles into protestors and innocent onlookers, and falsely arrested many peaceful protestors.

20. Most of the attacking officers were from the SRG, and for the most part, they had their badges concealed and their faces unmasked.

21. Although Tirado did nothing unlawful, wrongful, or suspicious, at around 8:30 p.m., defendant Rau, acting with approximately four other officers, assaulted Tirado, knocking out Tirado’s molar (bottom right side of his mouth), cracking other nearby teeth, causing swelling on his jaw, fracturing his cheekbone, then finally arresting him.

22. Just prior to this violent and unjustified attack, Tirado assisted a man who was standing on the sidewalk recording the protest on his phone when that man was suddenly struck in the chest with a bike by an SRG officer, causing the man to fall backward and crack his head on the pavement.

23. As Tirado and another medic approached the man to offer assistance, Tirado was tackled to the sidewalk by a group of officers, including defendant Rau.

24. Tirado's helmet was knocked off, his head smashed the ground, and the officers pinned Tirado on his back, pressing his neck. Tirado indicated that he couldn't breathe.

25. One officer stood on Tirado's left wrist, while another officer stood on his right wrist.

26. As Tirado was pinned on his back, Defendant Rau, aided by several other officers, punched him in his face several times and yelled "stop resisting" even though Tirado was not resisting.

27. In the course of being punched in the face, Tirado's molar was knocked out.

28. In the course of arresting Tirado, the officers violently yanked his left arm, dislocating his left shoulder.

29. Tirado complained to the officers that the metal handcuffs were hurting his left wrist, but officers told him to stop talking, and no officer did anything to loosen the handcuffs.

30. As Tirado sat on the ground in handcuffs, he spit blood out of his mouth.

31. While Tirado was in handcuffs waiting in line for the arrival of a bus that would take him to 1 Police Plaza, NYPD officers ripped off a pouch on his chest containing his cell phone and wallet, and they discarded it onto the street.

32. Tirado was transported in a bus to 1 Police Plaza for arrest processing.

33. Tirado was released after 3:15 a.m. on November 5 with a Desk Appearance Ticket (Serial No. 006-01070) (the "DAT"), which identified Defendant Hurchey as his arresting officer and Sgt. Stefopoulos Nikolaos from the 446 Command as the Desk Officer.

34. Scarcely any of the police officers who participated in his arrest and arrest-processing wore masks. The officers also removed the masks from Tirado and the other arrested protestors. Due to his fear of exposure, Tirado took a COVID test the following day, and tested negative.

35. Pursuant to the DAT's mandate, Mr. Tirado appeared in New York County Criminal Court (virtually, in accordance with the court's procedures) on January 22, 2021, at which point he was arraigned on Docket Number CR-000721-21NY.

36. The Criminal Court Complaint was based on purposeful fabrications by Defendants Hurchey and Rau. Specifically, Tirado was falsely charged with Criminal Possession of a Weapon in the Fourth Degree, Obstructing Governmental Administration in the Second Degree, and Resisting Arrest. These criminal charges were based on the fabrications that Tirado interfered with Rau as he tried to arrest another individual (by allegedly pulling and holding onto that individual), and that Tirado himself refused to put his hands behind his back.

37. There was no legitimate basis or truth to any of the criminal charges.

38. Nevertheless, not only did Hurchey sign the fabricated criminal court complaint on December 30, 2020, but Rau signed a supporting deposition on January 26, 2021 under penalty that "false statements made herein are punishable as a class A misdemeanor."

39. Mr. Tirado was ordered to appear in criminal court again on April 1, 2021 in connection with the malicious prosecution.

40. On April 1, 2021, Mr. Tirado made his court appearance, and the case was adjourned to May 6, 2021.

41. On May 6, 2021, the prosecution was dismissed.

42. Subsequently, Mr. Tirado attempted to obtain the property that had been taken from him – including his helmet, knee guards, arm guards, IFAK, and his smart phone.

43. The Manhattan District Attorney's office represented on July 1, 2021 that Tirado's IFAK and phone were not vouchered or in the possession of the NYPD.

44. Mr. Tirado was unable to learn the voucher number for the property that was in NYPD custody, precluding him from getting his property back.

45. As a result of the knocked-out molar and cracked teeth, Tirado has suffered extensive pain, tooth and gum damage, difficulty eating, and necrosis, requiring significant dental care costing tens of thousands of dollars, which he has been unable to afford, leading to exacerbation and deterioration of his dental condition.

46. As a result of his pain and injuries, Tirado did not return to work for about a week.

47. As a result of the officers' above-described conduct and brutality, Tirado has suffered from migraines on the left side of his head.

48. As a result of his injuries, Tirado was unable to partake in several subsequent protests.

DELIBERATE ACTS UNDER COLOR OF STATE LAW

49. All of the aforementioned acts of the individual defendants, their agents, servants and employees, were carried out under the color of state law in the course and scope of their duties.

50. All of the aforementioned acts deprived Plaintiff of the rights guaranteed to citizens of the United States by the First, Fourth, Fifth, and Fourteenth Amendments of the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

51. The individual defendants acted willfully, knowingly, and with the specific intent to deprive Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983, and by the First, Fourth, Fifth, and Fourteenth Amendments of the United States Constitution.

NYPD'S CHAOTIC AND BRUTAL RESPONSE TO PROTESTORS

52. When peaceful protestors marched, chanted, mourned, performed, attended, and danced on the streets of New York City after the murder of George Floyd in the summer of 2020, the NYPD sought to quash the protests.

53. Police in riot gear surrounded and trapped peaceful protestors; provoked and attacked protestors with batons and pepper spray; handcuffed peaceful protestors with extremely tight handcuffs; and detained them in crowded, unventilated conditions during the COVID-19 pandemic.

54. Throughout the City, NYPD officers assaulted and arrested individuals who were protesting against police brutality precisely because they were protesting against police brutality.

55. The NYPD utilized a policy throughout the City of surrounding, charging, and arresting peaceful protestors – a tactic known as “kettling.”

56. As they surrounded and approached the protestors, NYPD officers covered their shield numbers and turned off their body cameras.

57. The NYPD's attitude toward the peaceful protestors' message was expressed by NYPD Commissioner Shea who, in a press briefing on June 4, 2020, condemned the "hateful" rhetoric against the NYPD. "You look at the anti-police rhetoric, it disgusts me to my core," he stated.

58. On June 5, 2020, the New York Times reported: "In the past several days, New York Times journalists covering the protests have seen officers repeatedly charge at demonstrators after curfew, with seemingly little provocation, shoving them onto sidewalks, striking them with batons, and using other rough tactics."

59. In July 2020, the New York State Office of the Attorney General ("AG") issued a preliminary report on the NYPD's response to the George Floyd protests – *Preliminary Report on the New York City Police Department's Response to the Demonstration's Following the Death of George Floyd*. The AG Report documented a numerous allegations of excessive force, kettling, and brutal mass arrest tactics by NYPD officers against protestors.

60. In December 2020, the New York City Department of Investigation ("DOI") issued a report examining the NYPD's conduct in response to the protests – *Investigation into NYPD Response to the George Floyd Protests*.

61. The DOI Report found that the NYPD lacked a "clearly defined strategy," and according to the DOI, this deficiency – and its attendant ills such as insufficient staffing, insufficient training, overwhelmed and exhausted front-line officers – contributed to provocation, aggression, and violence among officers.

62. Amplifying poor judgment is the NYPD's lack of policies and procedures specific to policing protests.

63. The DOI Report also found: “NYPD’s Use of Force and Control Tactics to Respond to the Floyd Protests Produced Excessive Enforcement That Contributed to Heightened Tensions.”

64. Indeed, the NYPD regarded innocent Floyd protestors as criminals or sub-human; hence the thousands of images and of videos online that depict the hateful brutalization of crowds by police officers.

65. The AG Report, DOI Report, as well as a September 2020 Human Rights Watch report and numerous federal lawsuits filed following the 2020 protests, document the NYPD’s policy and practice of violently suppressing First Amendment expression using excessive force and mass arrests.

66. NYPD leadership and policymakers knew the NYPD has had historic problems with policing protests – such as the Republican National Convention in 2004 – yet still failed to adequately prepare its officers to respond to the 2020 protests, failed to prevent its officers from misbehaving, and failed to discipline officers who engaged in misconduct.

67. Numerous lawsuits arising out of the 2020 protests have challenged the NYPD’s misconduct, including *Payne et al. v de Blasio et al.*, No. 20-cv-8924 (SDNY), *Gelbard et al. v. City of New York et al.*, 20-cv-3163 (EDNY), *Sierra et al. v. City of New York et al.*, 20-cv-10291 (SDNY), *Jeffrey v. City of New York et al.*, 20-cv-2843 EDNY), *People of the State of New York v. City of New York et al.*, 21-cv-322 (SDNY), *Wood et al. v. City of New York et al.*, 20-cv-10541 (SDNY), and *Sow et al. v. City of New York et al.*, No. 21-cv-533 (SDNY). Plaintiff hereby incorporates the factual allegations in the operative pleadings into this document by reference.

68. Numerous articles show the NYPD's militarized and confrontational approach toward peaceful protestors – an approach exemplified by the notorious Strategic Response Group. *See e.g.* “How an NYPD Anti-Terror Squad Became A Tool For Cracking Down On Protests,” by Jeff Offenhartz; February 19, 2021; available at: <https://gothamist.com/news/how-elite-anti-terror-squad-transformed-nypds-approach-protest-policing>.

69. The violent and unconstitutional tactics the NYPD used against peaceful protestors throughout the summer of 2020 persisted in subsequent Black Lives Matter protests, including the November 4, 2020 protest at the center of this lawsuit.

DAMAGES

70. As a direct and proximate cause of the said acts of the Defendants, Plaintiff suffered the following injuries and damages in a sum exceeding the jurisdiction of all lower courts:

- a. Violation of his constitutional rights under the First, Fourth, Fifth, and Fourteenth Amendments of the United States Constitution;
- b. Violation of his constitutional rights under the New York State Constitution;
- c. Loss of liberty;
- d. Physical injury;
- e. Emotional distress, degradation, and suffering.

CAUSES OF ACTION

FIRST CLAIM**False Arrest Under Section 1983**

71. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

72. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from false arrest.

73. As detailed above, the individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

74. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM**Excessive Force Under Section 1983**

75. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

76. By the actions described, the individual defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from excessive and unreasonable force.

77. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM**First Amendment Retaliation Under Section 1983**

78. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

79. By the actions described, the individual defendants violently arrested Plaintiff because he exercised his First Amendment right to join and assist a peaceful Black Lives Matter protest that criticized police brutality. In doing so, the individual defendants chilled Plaintiff's First Amendment rights.

80. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Denial of the Right to a Fair Trial Under Section 1983

81. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

82. By the actions described, the Defendants deprived Plaintiff of his Fourth, Fifth, and Fourteenth Amendment rights to a fair trial.

83. The individual defendants deliberately forwarded fabricated information – specifically, false allegations that Plaintiff possessed a weapon, obstructed governmental administration, and resisted arrest – to the New York County Attorney's Office.

84. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

FIFTH CLAIM

Malicious Prosecution Under Section 1983

85. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

86. By the actions described, the Defendants deprived Plaintiff of his Fourth Amendment right to be free of unreasonable or unwarranted restraints on personal liberty, specifically his right to be free from malicious prosecution.

87. Without probable cause, the individual defendants directly and actively initiated a criminal proceeding against Plaintiff, creating a fraudulent theory of guilt.

88. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SIXTH CLAIM

Failure to Intervene Pursuant to 42 U.S.C. Section 1983 Against the Individual Defendants

89. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

90. Each and every individual defendant had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by other law enforcement officers.

91. The individual defendants failed to intervene on Plaintiff's behalf to prevent, end, or truthfully report the violations of his constitutional rights despite knowing about such violations and having had a realistic opportunity to do so.

92. As a direct and proximate result of the aforementioned conduct of the individual defendants, Plaintiff sustained the damages and injuries hereinbefore alleged.

SEVENTH CLAIM

Municipal Liability Under Section 1983

93. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

94. All of the wrongful acts or omissions complained of herein were carried out by the individual defendants pursuant to: (1) formal policies, rules, and procedures of Defendant City; (2) actions and decisions by Defendant City's policymaking agents including, but not limited to, Mayor Bill de Blasio and Commission Shea; (3) customs, practices, and usage of the NYPD that are so widespread and pervasive as to constitute *de facto* policies accepted, encouraged, condoned, ratified, sanctioned and/or enforced by Defendant City; (4) Defendant City's deliberate indifference to Plaintiff's rights secured by the First and Fourth Amendments of the United States Constitution, as evidenced by the City's failure to train, supervise, and discipline NYPD officers despite full knowledge of the officers' wrongful acts, as described herein.

95. As a direct and proximate result of the acts of Defendant City, Plaintiff sustained the other damages and injuries hereinbefore alleged.

PENDENT STATE CLAIMS**FIRST CLAIM****False Imprisonment under N.Y. State Law**

96. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

97. The individual defendants intentionally arrested and detained Plaintiff without probable cause, without a warrant, and without privilege or consent.

98. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

SECOND CLAIM

Battery Under N.Y. State Law

99. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

100. As detailed above, the individual defendants intentionally touched Plaintiff in an offensive and harmful manner, and they intentionally subjected him to offensive and harmful contact.

101. As a direct and proximate result, Plaintiff sustained the damages and injuries hereinbefore alleged.

THIRD CLAIM

Malicious Prosecution Under N.Y. State Law

102. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

103. As detailed above, the individual defendants intentionally and with actual malice initiated a prosecution against Plaintiff without probable cause. The prosecution terminated in Plaintiff's favor when all charges against him were dismissed.

104. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

FOURTH CLAIM

Negligent Hiring/Training/Retention of Employment Services Under N.Y. State Law Against Defendant City of New York

105. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

106. Defendant City owed a duty of care to Plaintiff to prevent the Constitutional violations sustained by Plaintiff.

107. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions. Defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants could potentially cause harm.

108. Defendant City's negligence in hiring, screening, training, disciplining and retaining the individual defendants proximately caused Plaintiff's injuries.

109. As a result of its negligent conduct, Defendant City has directly and proximately caused the damages and injuries hereinbefore alleged.

FIFTH CLAIM

***Respondeat Superior* Against Defendant City of New York**

110. Plaintiff realleges and reiterates all allegations set forth in the preceding paragraphs as if stated fully herein.

111. Defendant City of New York employed all of the individual defendants at the time of the incident.

112. At the time of the incident, all of the individual defendants were acting in the scope of their employment with the City of New York.

113. During the commission of the incident in question, all of the individual defendants were working in furtherance of their employment with the City of New York.

114. Under the doctrine of *respondeat superior*, the City of New York is responsible for the wrongdoing of its employees acting within the scope of their employment.

115. The plaintiff is entitled to compensatory damages from the City of New York in an amount to be determined at trial, together with attorneys' fees and costs.

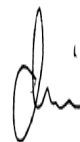
116. As a direct and proximate result of the acts of the New York City employees detailed above, Plaintiff sustained the damages and injuries hereinbefore alleged.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants:

- a. An order awarding compensatory damages for Plaintiff Abel Tirado in an amount to be determined at trial;
- b. An order awarding punitive damages in an amount to be determined at trial;
- c. A court order, pursuant to 42 U.S.C. Section 1988, that Plaintiff is entitled to reasonable attorney's fees, costs, and disbursements;
- d. Such other and further relief as this Court deems appropriate.

DATED: New York, New York
January 29, 2022



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